

No. 07-608

IN THE
Supreme Court of the United States

UNITED STATES OF AMERICA,
Petitioner,

V.

RANDY EDWARD HAYES,
Respondent.

**On Writ of Certiorari To The
United States Court of Appeals for the Fourth Circuit**

**BRIEF *AMICI CURIAE* OF UNITED STATES
SENATORS FRANK R. LAUTENBERG, DIANNE
FEINSTEIN, AND PATTY MURRAY IN SUPPORT OF
PETITIONER**

BETTY JO CHRISTIAN
Counsel of Record
PATRICK F. LINEHAN
SIOBHAN BRILEY
STEPTOE & JOHNSON LLP
1330 Connecticut Ave., N.W.
Washington, D.C. 20036
(202) 429-3000

Attorneys for Amici Curiae

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INTEREST OF THE AMICI CURIAE

The question presented in this case is whether a misdemeanor crime of domestic violence must have been prosecuted under a statute that has a domestic relationship as an element in order for the crime to be a predicate offense that prohibits the misdemeanant from possessing a gun under 18 U.S.C. § 922(g)(9) (2000 & Supp. V). *Amicus curiae* United States Senator Frank R. Lautenberg, representing the State of New Jersey, authored and sponsored the legislation before this Court. Senator Lautenberg has a strong interest in ensuring that courts and federal law enforcement officials construe the legislation to give effect to Congress's intent in enacting it.

United States Senators Dianne Feinstein and Patty Murray, representing the States of California and Washington, respectively, both voted for and spoke strongly in support of the legislation before this Court. Senators Feinstein and Murray also have a strong interest in ensuring that courts and federal law enforcement officials construe the legislation to give effect to Congress's intent in enacting it.¹

¹ No counsel for a party authored this brief in whole or in part, and no such counsel or party made a monetary contribution intended to fund the preparation or submission of this brief. No person other than *amici curiae*, or their counsel, made a monetary contribution to its preparation or submission. The parties have consented to the filing of this brief and their consents are being lodged herewith.

INTRODUCTION

When Congress enacted the legislation extending prohibition against gun possession to domestic violence misdemeanants, it did so with a broad purpose: to address the widespread problem of gun-related domestic violence by taking guns out of the hands of *all* individuals with a history of domestic abuse.

The statistics—both at the time of the Amendment’s enactment and more recently—are staggering. Studies have shown that, on average, more than three women in the United States are murdered by their husbands or boyfriends every day. U.S. Dep’t of Justice, *Bureau of Justice Statistics Crime Data Brief, Intimate Partner Violence, 1976-2001* (Feb. 2003) (cited on Family Violence Prevention Fund website, at <http://www.endabuse.org/resources/facts/>). Access to firearms increases the risk of intimate partner homicide more than five times more than instances where there are no weapons. D.J.C. Campbell et al., *Risk Factors For Femicide in Abusive Relationships: Results from a Multi-Site Case Control Study*, *Am. J. Public Health*, 93(7) at 1092 (July 2003); *see also* Arthur R. Kellerman et al., *Gun Ownership as a Risk Factor for Homicide in the Home*, 329 *New Eng. J. Med.* 1084-91 (Oct. 7, 1993) (concluding that “[p]eople who keep guns in their homes appear to be at greater risk of homicide in the home than people who do not[,]... due to a substantially greater risk of homicide at the hands of a family member or intimate acquaintance”). In fact, more than three times as many women are murdered by guns used by their husbands or intimate acquaintances than are killed by strangers’ guns, knives or other weapons combined. Violence Policy Center, *When Men Murder Women: An Analysis of 2002 Homicide Data: Females Murdered by Males in Single Victim/Single Offender Incidents* (2004); *see also* James A. Mercy et al., *Fatal Violence among Spouses in the United States, 1976-85*, *J. Am. Med. Ass’n*, 79(5) at 598

(May 1989) (finding that firearms more likely to be used in spouse homicides than in nonspouse homicides).

With statistics like these in mind, Senator Lautenberg introduced the legislation at issue in this case. *See* 142 Cong. Rec. 5,840 (1996) (introducing amendment and citing statistic that “in households with a history of battering, a gun in the home increases the likelihood that a woman will be murdered fivefold”). That legislation amended Section 922(g), Title 18, United States Code, to add subsection (9), prohibiting anyone convicted of a “misdemeanor crime of domestic violence” from owning or possessing a gun. 18 U.S.C. § 922(g)(9). The legislation defined a “misdemeanor crime of domestic violence” as one that “(i) is a misdemeanor under Federal or State law;” that “(ii) has, as an element, the use or attempted use of physical force, or the threatened use of a deadly weapon,” and that is committed by someone who is in a specified domestic relationship with the victim. 18 U.S.C. § 921(a)(33)(A) (2000 & Supp. V) (hereinafter, “the Lautenberg Amendment” or “Amendment”).²

² The entire text of §921(a)(33)(A) is as follows:

Except as otherwise provided in subparagraph (C), the term “misdemeanor crime of domestic violence” means an offense that—

(i) is a misdemeanor under Federal or State law; and

(ii) has, as an element, the use or attempted use of physical force, or the threatened use of a deadly weapon, committed by a current or former spouse, parent, or guardian of the victim, by a person with whom the victim shares a child in common, by a person who is cohabitating with or has cohabitated with the victim as a spouse, parent, or guardian, or by a person similarly situated to a spouse, parent, or guardian of the victim[.]

(Continued ...)

Prior to the Lautenberg Amendment, only those convicted of felonies could be prohibited from firearm ownership and possession under §922(g). Because of the barriers to prosecuting and convicting domestic violence offenders—including many states’ view of domestic violence as a family matter, rather than a crime against the state—many offenders were permitted to plead down from felonies to misdemeanors, and thus remained free to possess firearms and to terrorize and murder their loved ones. Senator Lautenberg’s legislation—and Congress’s enactment of it—was aimed at closing this loophole in federal gun ownership restrictions, and keeping guns out of the hands of anyone who “attempts or threatens violence against a loved one.” See 142 Cong. Rec. 10,377 (1996); 142 Cong. Rec. 26,675 (1996).

For almost eleven years, the federal Courts of Appeals that considered the Amendment adhered to this clear intent of the Senator and his colleagues in Congress, unanimously holding that for a domestic violence misdemeanor to be subject to §922(g)(9)’s gun ban, the statute under which he was previously convicted need have as an element only the “use or attempted use of physical force, or the threatened use of a deadly weapon[.]” 18 U.S.C. § 922(g)(9). See *United States v. Heckenliable*, 446 F.3d 1048, 1049 (10th Cir. 2006); *United States v. Belless*, 338 F.3d 1063, 1067 (9th Cir. 2003); *White v. Dept. of Justice*, 328 F.3d 1361, 1364-67 (Fed. Cir. 2003); *United States v. Shelton*, 325 F.3d 553, 562 (5th Cir. 2003); *United States v. Barnes*, 295 F.3d 1354 (D.C. Cir. 2002); *United States v. Kavoukian*, 315 F.3d 139, 142-44 (2d Cir. 2002); *United States v. Chavez*, 204 F.3d 1305, 1313-14 (11th Cir. 2000); *United States v. Meade*, 175 F.3d 215, 218-21 (1st Cir. 1999); *United States v. Smith*, 171

18 U.S.C. § 921(a)(33)(A).

F.3d 617, 620 (1999). Recently, however, a divided panel of the Fourth Circuit—the first and only court to do so—required that the predicate misdemeanor statute also explicitly contain an additional element: that the offense be committed by an individual in a domestic relationship with the victim. See *United States v. Hayes*, 482 F.3d 749, 752 (4th Cir. 2007).

Amicus agrees with the Petitioner that the Fourth Circuit’s reading of the Lautenberg Amendment is patently erroneous. *Amicus* submits that, for the reasons set forth in Petitioner’s brief,³ the plain language of the statute supports Petitioner’s argument, and flatly undermines the Fourth Circuit’s construction of the statute. Pet. Br. at 12-22.

However, to the extent there is any legitimate debate over the meaning of the plain language of the statute, the legislative history of the Amendment should end all such debate. As argued herein, the Amendment’s legislative history demonstrates that Congress intended that the Lautenberg Amendment apply to all domestic violence misdemeanants regardless of whether the predicate misdemeanor statute contains the domestic relationship as an element. Contrary to the Fourth Circuit’s conclusion, Congress never intended to limit §922(g)(9)’s predicate offenses to only those laws that have as explicit elements both the use or attempted use of violence *and* the presence of a domestic relationship.

³ *Amicus* also submits that reversal is warranted for all of the other reasons set forth in Petitioner’s Brief, as well as those set forth in the briefs of other *amici* in support of Petitioner.

SUMMARY OF ARGUMENT

This brief, on behalf of the sponsor of the legislation and two of its strongest supporters in the Senate, attempts to provide this Court with a complete account of the legislative history of the Lautenberg Amendment. While even the cursory glance at the legislative history given by the Fourth Circuit belies the court's own interpretation of the Amendment, a truly thorough examination of this history lays bare this interpretation as wholly at odds with Congressional intent.

First, this brief argues that it is appropriate for the Court to examine the legislative history of the Amendment because legislative history is a vital tool for determining Congress's intent in enacting the law. *Second*, the brief examines in depth the legislative history of the Amendment, including Congress's prior efforts to enact similar legislation. This examination reveals that Congress intended the Amendment's prohibition to apply broadly to all domestic misdemeanants, in order to close the loophole created by prosecution of many domestic violence offenses as misdemeanors. Moreover, the legislative record reflects that the "as an element" language at the core of the Fourth Circuit's holding was meant to narrow the potential scope of *conduct* subject to the prohibition, not the scope of *misdemeanor statutes*, and was never intended to undermine the broad application to all domestic violence convictions that Congress had in mind for the Amendment. *Third*, Congress's presumed awareness of state and federal law when it enacted the Amendment also demonstrates that it intended the Amendment to apply to all domestic violence misdemeanants. *Fourth*, Congressional silence in the face of unanimous judicial and administrative interpretation of the Amendment strongly suggests that such interpretation is in line with Congressional intent, and further undermines the Fourth Circuit's holding below. In sum, a truly "thorough

examination of the entire history of the legislation,” *Hayes*, 482 F.3d at 756, reveals no support for the Fourth Circuit’s interpretation and significant support for the contrary interpretation adopted by every other Court of Appeals to consider this question.

ARGUMENT

I. THE LEGISLATIVE HISTORY OF THE LAUTENBERG AMENDMENT IS AN APPROPRIATE TOOL IN CONSTRUING CONGRESSIONAL INTENT.

“As in all cases of statutory construction, [the Court’s] task is to interpret the words of [the statute] in light of the purposes Congress sought to serve.” *Chapman v. Houston Welfare Rights Org.*, 441 U.S. 600, 608 (1979). It is well-settled that judicial consideration of a statute’s legislative history is an appropriate means of discerning that purpose. *See, e.g., Wisc. Pub. Intervenor v. Mortier*, 501 U.S. 597, 610 n.4 (1991) (citation omitted) (“Our precedents demonstrate that the Court’s practice of utilizing legislative history reaches well into its past.”); *accord Boumediene v. Bush*, Nos. 06-1195, 06-1196 2008 WL 2369628, at *11 (S. Ct. June 12, 2008) (noting that appeals court “was correct to take note of the legislative history when construing” the Military Commissions Act of 2006).

An examination of legislative history is appropriate even where, as here, the statute at issue is unambiguous. *See, e.g., Conroy v. Aniskoff*, 507 U.S. 511, 514 (1993) (examining legislative history of provision of Soldiers’ and Sailors’ Civil Relief Act after concluding that provision was “unambiguous” and “unequivocal,” in order to refute argument that literal interpretation of statute would lead to absurd results). Moreover, to the extent that the statute is

viewed as ambiguous, the Court looks to legislative history to apply the statute consistently with legislative intent. *See Chapman*, 441 U.S. at 608; *see also Blum v. Stenson*, 465 U.S. 886, 896 (1984) (“Where, as here, resolution of a question of federal law turns on a statute and the intention of Congress, we look first to the statutory language and then to the legislative history if the statutory language is unclear.”).⁴

When read against the backdrop of its complete legislative record, the Fourth Circuit’s argument that a §922(g)(9) predicate misdemeanor statute requires, as an element, a domestic relationship cannot withstand even minimal scrutiny.

⁴ This Court has also held that legislative history must be considered before resorting to the rule of lenity in construing a criminal statute. *See United States v. Granderson*, 511 U.S. 39, 54 (1994) (“[W]here text, structure, and *history* fail to establish that the Government’s position is unambiguously correct[,] we apply the rule of lenity and resolve the ambiguity in [the defendant’s] favor.”) (emphasis added). Because the Fourth Circuit’s reversal of Hayes’ conviction was based in part on its application of the rule of lenity, this Court must examine the Amendment’s legislative history before upholding the reversal on this ground.

II. THE LEGISLATIVE HISTORY DEMONSTRATES CONGRESS'S INTENT TO PROHIBIT GUN POSSESSION BY ALL DOMESTIC VIOLENCE MISDEMEANANTS, REGARDLESS OF WHETHER THE PREDICATE MISDEMEANOR STATUTE CONTAINS A DOMESTIC RELATIONSHIP ELEMENT.

The legislative history of the Lautenberg Amendment demonstrates that Congress's intent was simple and straightforward: to prohibit gun possession by *anyone* convicted of a misdemeanor that involved domestic violence. As Respondent concedes and the court below recognized, the Lautenberg Amendment was intended to extend the prohibition on gun possession and purchase by domestic abusers beyond those convicted of a felony. Cert. Pet. in Opp'n, at 7-9; *see also Hayes*, 482 F.3d at 752. Under Respondent's and the Fourth Circuit's view, however, this extension was meant to be limited to only those convicted under misdemeanor statutes that have a domestic relationship element. *See* Cert. Pet. in Opp'n, at 8; *Hayes*, 482 F.3d at 758-59.

Such a limitation on the Amendment cannot be sustained in the face of the clear evidence of Congressional intent to the contrary in the legislative history. That history leaves no doubt that the intent behind the Amendment was to close—completely and without limitation—the loophole in the current law that allowed domestic abusers to possess firearms when properly convicted under misdemeanor statutes for their acts of abuse. Moreover, the legislative history further reveals that the “as an element” language on which the Fourth Circuit's reasoning rests was inserted for one reason and one reason only: to address a narrow concern about the breadth of the scope of domestic violence conduct covered

by §922(g)(9), and not the scope of misdemeanor statutes covered by that provision.

A. Legislative History Demonstrates an Intent to Close the “Loophole” Created by Prosecutors’ and Courts’ Treatment of Domestic Violence Acts as Misdemeanor Offenses.

The legislative intent behind the Lautenberg Amendment was to extend the prohibition against gun ownership and possession by domestic violence felons under federal law to those domestic abusers whose acts resulted in conviction as misdemeanors. Senator Lautenberg explained this intent as he introduced the Amendment on the Senate floor:

Under current Federal law, it is illegal for persons convicted of felonies to possess firearms. Yet, many people who engage in serious spousal or child abuse ultimately are not charged with or convicted of felonies. At the end of the day, due to outdated laws or thinking, perhaps after a plea bargain, they are, at most, convicted of a misdemeanor. In fact, most of those who commit family violence are never even prosecuted. But when they are, one-third of the cases that would be considered felonies, if committed by strangers, are instead filed as misdemeanors. The fact is that in many places domestic violence is not taken as seriously as other forms of brutal behavior. Often acts of serious spouse abuse are not even considered felonies.

142 Cong. Rec. 22,988 (1996). He stated that the Amendment “would close this dangerous loophole and keep guns away from violent individuals who threaten their own

families,” emphasizing that “[d]omestic violence, *no matter how it is labeled*, leads to more domestic violence....” *Id.* (emphasis added).

Moreover, Senator Lautenberg left no ambiguity as to the Amendment’s broad purpose of reaching all domestic abusers, regardless of the nature of the statute under which they were convicted:

This amendment, very simply, would establish a policy of *zero tolerance* when it comes to guns and domestic violence. The amendment would prohibit *any* person convicted of domestic violence from possessing a firearm. In the simplest words, the amendment says that *a spouse abuser, wife beater, or child abuser should not have a gun.*

Id. Moreover, in addressing the impact of the amendment on local law enforcement’s obligations under the Brady Law, he gave explicit recognition to inclusion in the statute of those crimes not expressly identified as domestic violence crimes: “[C]onvictions for domestic violence-related crimes often are for crimes, such as assault, that are not explicitly identified as related to domestic violence.” 142 Cong. Rec. 26,675 (1996).

Senator Lautenberg was not alone in hailing the intent of the Amendment. On the day it was introduced, Senator Dianne Feinstein described the purpose of the Amendment in similar terms: “[W]e already prohibit convicted felons from possessing a firearm. But it is an unfortunate fact that many domestic violence offenders are never convicted of a felony. Outdated or ineffective laws often treat domestic violence as a lesser offense.” 142 Cong. Rec. 22,988 (1996). Senator Patty Murray’s floor statement also highlighted the

“misdemeanor loophole” the Amendment was intended to close, relating an example of the type of situation that the Amendment sought to prevent:

One woman I know told me the story of her abusive ex-husband. He was physically abusive, and had been convicted of misdemeanors. ... [W]hen he came home one night, drunk, and yelling that the house wasn't clean enough for him. Because he was able to find the bullets, find the gun, load it, and point it at his wife. That she is alive today is a miracle....

142 Cong. Rec. 22,987 (1996).

These Senators' statements make clear the far-reaching intent of the Amendment: to keep firearms out of the hands of all individuals previously convicted of acts of domestic violence. Their intent, simply put, was to prevent gun-related acts of domestic violence by *all* prior domestic abusers, and not just those convicted under statutes having a domestic relationship element.

B. Legislative History Demonstrates That the Amendment's "As An Element" Language Served the Sole Purpose of Addressing the Scope of *Conduct* Covered by the Amendment, Not the Scope of *Misdemeanor Statutes*.

At no time during the debate on the Amendment did any lawmaker suggest that a domestic relationship must be an element of the predicate misdemeanor statute in order to sustain a conviction under §922(g)(9). The statements of Senator Lautenberg and his colleagues make clear that Congress intended the gun ban to reach *all* domestic violence perpetrators, regardless of whether the misdemeanor statute

under which they were convicted had a domestic relationship element. As a complete account of the legislative history—from conception to enactment—reveals, the “as an element” language at the crux of this interpretive dispute had never been part of Lautenberg’s legislation or its legislative predecessors until the eve of the Amendment’s enactment. Moreover, such language was added at that time for one reason and one reason only: to ensure that only crimes involving the use, attempted use, or threat of physical force could form the basis of a predicate misdemeanor under §922(g)(9). The addition of “as an element” to §922(g)(9) was not intended to impose a requirement that such predicate offenses have a domestic relationship element, a requirement that would have itself undermined the proclaimed broad purpose of the Amendment.

1. Prior Efforts to Enact Legislation Nearly Identical to the Lautenberg Amendment Never Considered Requiring a Domestic Relationship Element in the Underlying Misdemeanor Convictions.

Senator Lautenberg’s introduction of the legislation enacted as §922(g)(9) did not occur in a legislative vacuum. Rather, it was the culmination of ongoing efforts by the Senator and other lawmakers to enact nearly identical legislation closing the dangerous domestic violence “loophole” in §922(g). The history of earlier definitions of a “misdemeanor crime of domestic violence” supports only the conclusion that Congress never considered including “as an element” in the legislation, in any of its incarnations, until hours before its enactment and for a purpose wholly unrelated to the Fourth Circuit’s reading of the statute.

The effort to keep guns out of the hands of domestic violence misdemeanants began in the 103rd Congress. The

originally conceived bill would have prohibited anyone subject to a restraining order or convicted of a domestic violence misdemeanor from obtaining a gun. *See* 139 Cong. Rec. 25,490 (1993). It passed the Senate, but the House limited the law as enacted to prohibiting gun possession only by those subject to restraining orders. *See* 139 Cong. Rec. 28,487 (1993).

Senator Lautenberg first introduced his legislation on March 21, 1996. The first Lautenberg bill was nearly identical to the version that the House had defeated in 1993. It banned anyone under indictment for, or who had been convicted of, “any crime involving domestic violence” from acquiring a gun. 142 Cong. Rec. 5,840 (1996). It defined “crime involving domestic violence” as:

a felony or misdemeanor crime of violence, regardless of length, term, or manner of punishment, committed by a current or former spouse, parent, or guardian of the victim, by a person with whom the victim shares a child in common, by a person who is cohabitating with or has cohabitated with the victim as a spouse, parent, or guardian, or by a person similarly situated to a spouse, parent, or guardian of the victim under the domestic or family violence laws of the jurisdiction in which such felony or misdemeanor was committed.

Id. Critically, it did not contain any language requiring that certain “elements” be present in state statutes defining the predicate offense. Indeed, it did not include the word “element” at all. *Id.*

Senator Lautenberg succeeded in appending this legislation to the Interstate Stalking Punishment and Prevention Act. 142 Cong. Rec. 19,415 (1996). He faced

initial resistance regarding the bill's reach from Senator Kay Bailey Hutchison and others, who viewed the legislation as inappropriate for the stalking bill. 142 Cong. Rec. 26,674-77 (1996). By agreeing to drop the language criminalizing gun possession based solely on an indictment for a domestic violence misdemeanor, Senator Lautenberg overcame this resistance. *Id.*⁵ He also agreed to insert language requiring that any predicate conviction be one for which the defendant was either represented by counsel or knowingly and intelligently waived his right to such counsel. *Id.* No other changes to the bill were proposed.

In the end, although the Senate passed the anti-stalking bill including this modified version of the Senator's amendment, *see* 142 Cong. Rec. at 26,674-76 (1996), the House failed to act on it. But the House's failure to act on the bill had nothing to do with the language in the Lautenberg Amendment. Moreover, nothing in the history of the Senator's negotiation and compromise regarding the Amendment so much as hints that anyone took issue with how the legislation defined "crime of violence." No one suggested that the Senator include anything "as an element" of the predicate misdemeanor offense for conviction under §922(g). Indeed, there was not a word of discussion, debate, or dispute about requiring a domestic relationship as an element of the predicate offense statute.

⁵ In a floor statement in support of the bill, Senator Hutchinson praised the compromise bill in terms similar to those of Senator Lautenberg: "Because of Senator Lautenberg's amendment, we are also going to be able to keep people who batter their wives or people with whom they live from having handguns." 142 Cong. Rec. 19,301 (1996).

2. The History of the Amendment's Enactment Demonstrates that the Eleventh-Hour Addition of the "As An Element" Language Was Intended to Address the Scope of *Conduct* Covered by the Amendment, Not the Scope of *Misdemeanor Statutes* Covered by it.

As the legislative history leading up to Senator Lautenberg's introduction of the Amendment demonstrates, no consideration was ever given to limiting this extension of the gun prohibition for criminals to only those misdemeanants convicted under statutes having a domestic relationship as an element. Moreover, the only difference between Senator Lautenberg's previous amendment included in the Anti-Stalking bill and the final Amendment as enacted was the insertion of the "as an element" language currently before the Court. However, as the legislative record reveals, this isolated modification of the language addressed a narrow concern raised on the eve of enactment: the scope of domestic violence-related *conduct* covered by the Amendment, and not the scope of *misdemeanor statutes*.

The Lautenberg Amendment ultimately was enacted into law as part of an Omnibus Appropriations bill in 1996. H.R. 3610, 104th Cong. (1996) (hereinafter, "Appropriations Act"). Senator Lautenberg offered his amendment, in a form identical to his previously proposed Amendments, on September 12, 1996. The Amendment was approved by the Senate by a voice vote of 97-2 that same day.⁶

⁶ Section 922(g)(9) was enacted as part of the Treasury, Postal Service, and General Government Appropriations Act, 1997, Pub. L. No. 104-208, Div. A, 110 Stat. 3009-314, which
(Continued ...)

When the Appropriations Act entered conference committee, however, the Lautenberg Amendment encountered significant resistance from Republican conferees. *See* 142 Cong. Rec. 25,001-02 (1996). Included among the proposed changes to the Amendment were limiting the misdemeanor ban to those entitled to a jury trial, limiting it to misdemeanants notified of the prohibition at the time of their conviction, and limiting it to misdemeanants who had abused their intimate partners (as opposed to their children). *Id.* However, there is nothing anywhere in the legislative record that suggests any objection to the Amendment's failure to require a domestic relationship as an element of the underlying predicate offense for a §922(g)(9) conviction.

In response to these objections, Senator Lautenberg agreed, on the night before the bill's final passage, to a number of changes in order to address its opponents' concerns. *See* 142 Cong. Rec. 26,674-77 (1996). He agreed to exempt from the ban those individuals who were wrongly denied a trial by jury (the other proposals described above were not incorporated into the Amendment). *Id.* In addition, and most critically, he agreed to revise the definition of "crime of violence" to address opponents' concerns that the term, which had been included in all prior versions of the Amendment, was too broad and could be interpreted as "cutting up a credit card with a pair of scissors." 142 Cong. Rec. 26,675 (1996). The language was changed to that of the version ultimately enacted, introducing for the first time the

was in turn enacted as part of the Omnibus Consolidated Appropriations Act, 1997, Pub. L. No. 104-208, 110 Stat. 3009.

requirement that the predicate offense “have, as an element, the use or attempted use of physical force, or the threatened use of a deadly weapon . . .”

There is no evidence whatsoever in the legislative record that this new language arose from any concern other than the potential overbreadth of the phrase “crime of violence.” There is simply no basis to conclude that the language revision was intended to add an additional requirement—that all predicate offense statutes have a domestic relationship “element”—to the new law.

The very next day, Senator Lautenberg gave a detailed explanation of the significance of this change on the Senate floor, providing critical insight as to the meaning of the newly added language:

[T]he revised language includes a new definition of the crimes for which the gun ban will be imposed. Under the original version, these were defined as crimes of violence against certain individuals, essentially family members. Some argued that the term crime of violence was too broad, and could be interpreted to include an act such as cutting up a credit card with a pair of scissors. Although this concern seemed far-fetched to me, I did agree to a new definition of covered crimes that is more precise, and probably broader.

Under the final agreement, the ban applies to crimes that have, as an element, the use or attempted use of physical force, or the threatened use of a deadly weapon. This is an improvement over the earlier version,

which did not explicitly include within the ban crimes involving an attempt to use force, or the threatened use of a weapon, if such an attempt or threat did not also involve actual physical violence. *In my view, anyone who attempts or threatens violence against a loved one has demonstrated that he or she poses an unacceptable risk, and should be prohibited from possessing firearms.*

142 Cong. Rec. 26,675 (1996) (emphases added).

And moments later, addressing the import of the new provision as it would relate to background check requirements under the Brady law, Senator Lautenberg made clear the Congressional intent that the Lautenberg Amendment would apply to all domestic violence misdemeanor crimes, regardless of whether the predicate statute explicitly included the domestic relationship as an element. Sen. Lautenberg explained:

Under the Brady law, local law enforcement authorities are required to make reasonable efforts to ensure that those who are seeking to purchase a handgun are not prohibited under Federal law from doing so. Mr. President, *convictions for domestic violence-related crimes often are for crimes, such as assault, that are not explicitly identified as related to domestic violence.* Therefore, it will not always be possible for law enforcement authorities to determine from the face of someone's criminal record whether a particular misdemeanor

conviction involves domestic violence, as defined in the new law.

Id. (emphasis added).

These excerpts from the Senator's floor statements make clear what the addition of the "as an element" language in §921(a)(33)(A) was intended to do: require only that "the use or attempted use of physical force, or the threatened use of a deadly weapon" be an element of the predicate crime supporting a §922(g)(9) conviction. Indeed, the legislative history is void of any expression, either by committee or by any member of Congress, suggesting a contrary reading of this revised language. The Senator's statement provides authoritative proof that the addition of the "as an element" language addresses only the concern about the scope of *criminal conduct* that could serve as a basis for a §922(g)(9) conviction, and not about the scope of *criminal misdemeanor statutes*.

Statements made by other lawmakers in support of the Lautenberg Amendment throughout its consideration by Congress further confirm that the Amendment is concerned with the type of crime committed by the gun owner, and not the type of criminal misdemeanor statute under which he was convicted. Senator Feinstein, for example, stated that "[t]his amendment looks at the type of crime, rather than the classification of the conviction." 142 Cong. Rec. 22,988 (1996); *see also* 142 Cong. Rec. 22,987 (1996) (noting the importance of "taking guns away" from those convicted of violent crimes against loved ones). Similarly, Senator Dodd indicated (shortly after the enactment of the Amendment) that the law would "prevent anyone convicted of *any kind* of

domestic violence from owning a gun.” 142 Cong. Rec. 27,264 (1996) (emphasis added).⁷

The legislative history of the Lautenberg Amendment—from conception to enactment—makes clear that Senator Lautenberg’s reason for introducing his bill, and the Congress’s intent in enacting it into law, was to keep guns out of the hands of *all* individuals who had been convicted of committing violence against loved ones, regardless of whether that violence was classified as a misdemeanor or a felony. The “as an element” language was added to the Amendment for one reason and one reason only: to limit the scope of crimes covered by §921(a)(33)(A), and not the scope of criminal misdemeanor statutes. The Fourth Circuit’s reading of the Amendment simply cannot be reconciled with this history.

III. CONGRESS’S PRESUMED AWARENESS OF STATE AND FEDERAL LAW WHEN IT ENACTED THE LAUTENBERG AMENDMENT DEMONSTRATES ITS INTENT THAT THE AMENDMENT APPLY TO ALL DOMESTIC VIOLENCE MISDEMEANANTS.

In discerning legislative intent, it is presumed that Congress, when it enacts legislation, “is knowledgeable about existing law pertinent to the legislation it enacts.” *Goodyear Atomic Corp. v. Miller*, 486 U.S. 174, 185 (1988).

⁷ Consistent with this legislative intent, the Conference Report for H.R. 3610 describes generally the Lautenberg Amendment as “amend[ing] Title 18 to deprive individuals convicted of a crime involving domestic violence of the right to own a firearm.” H. Rep. No. 104-863, at 1173 (1996).

“It is always appropriate to assume that our elected representatives, like other citizens, know the law. . ..” *Cannon v. Univ. of Chicago*, 441 U.S. 677, 696-97 (1979); see also *Director, Office of Workers’ Compensation Programs v. Perini North River Assocs.*, 459 U.S. 297, 319 (1983) (same) (quoting *Cannon*, 449 U.S. 677). In light of this well-settled principle, this Court must therefore presume that Congress was aware of the State and Federal legal landscape at the time as related to domestic violence law.

Against this presumption, the Fourth Circuit’s interpretation of the Lautenberg Amendment is unsustainable. In 1996, at the time Congress enacted the Amendment, only seventeen states and Puerto Rico had in effect misdemeanor laws that contained, as an element, a domestic relationship. See *United States v. Barnes*, 295 F.3d 1354, 1364 n.12 (D.C. Cir. 2002) (quoting *United States v. Smith*, 964 F. Supp. 286, 293 (1997)). Under the Fourth Circuit’s reading of the Lautenberg Amendment, this would mean that Congress intended the Amendment to apply to only those eighteen jurisdictions, leaving the others effectively exempt from it. There is simply no indication in either the language of the statute or its legislative history that Congress intended to subject domestic violence misdemeanants to different criminal prohibitions depending on the state in which they were previously convicted. Absent any indication of such legislative intent, such an interpretation of the Amendment cannot withstand scrutiny. See *United States v. Turley*, 352 U.S. 407, 411 (1957) (“[I]n the absence of a plain indication of an intent to incorporate diverse state laws into a federal criminal statute, the meaning of the federal statute should not be dependent on state law.”); *Dickerson v. New Banner Inst., Inc.*, 460 U.S. 103, 119-20 (1983) (absent plain indication to the contrary by Congress, federal laws are not to be construed so that their application is dependent on state law, “because the application of federal

legislation is nationwide and at times the federal program would be impaired if state law were to control”), *reh’g denied*, 461 U.S. 911 (1983); *accord Taylor v. United States*, 495 U.S. 575, 590 (1990) (“It seems to us to be implausible that Congress intended the meaning of ‘burglary’ for purposes of § 924(e) to depend on the definition adopted by the state of conviction.”).

Similarly, Congress, in enacting the Amendment, must also be presumed to have been aware that there were no federal misdemeanor laws on the books at that time that had, as an element, a domestic relationship. Yet the Lautenberg Amendment expressly applies to those convicted of a “misdemeanor under *Federal*, State or Tribal law.” 18 U.S.C. § 921(a)(33)(A)(i) (2000 & Supp. V) (emphasis added). The Fourth Circuit’s reading of the Amendment would therefore render the express reference to Federal misdemeanor laws a dead letter, and is fatally flawed for this reason as well. *See TRW Inc. v. Andrews*, 534 U.S. 19, 32 (2001) (“It is a cardinal principle of statutory construction that a statute ought, upon the whole, to be so construed that, if it can be prevented, no clause, sentence or word shall be superfluous, void or insignificant.”) (internal quotation marks and citation omitted); *United States v. Menasche*, 348 U.S. 528, 538-39 (1955) (“It is [the Court’s] duty to give effect, if possible, to every clause and word of a statute.”) (internal quotation marks and citation omitted).

**IV. CONGRESSIONAL SILENCE IN THE FACE
OF UNANIMOUS JUDICIAL AND
ADMINISTRATIVE INTERPRETATIONS OF
THE AMENDMENT DEMONSTRATES ITS
INTENT THAT THE AMENDMENT APPLY
TO ALL DOMESTIC VIOLENCE
MISDEMEANANTS.**

Beyond the clear import of the legislative intent of the Lautenberg Amendment, it is also significant that Congress has declined to amend the statute, despite the uniform view of the federal appellate courts and other government entities that the Amendment applies to all domestic violence misdemeanants, regardless of whether a domestic relationship is an element of the predicate offense statute. Indeed, until the Fourth Circuit's anomalous decision below, every court to consider it interpreted the Amendment consistent with Petitioner's position.⁸ At least two governmental entities have agreed with these courts. *See* 27 C.F.R. § 478.11 (1998) (Bureau of Alcohol, Tobacco and

⁸ *See United States v. Heckenliable*, 446 F.3d 1048, 1049 (10th Cir. 2006), *cert. denied*, 127 S. Ct. 287 (2006); *United States v. Belless*, 338 F.3d 1063, 1067 (9th Cir. 2003); *White v. Dept. of Justice*, 328 F.3d 1361, 1364-67 (Fed. Cir. 2003); *United States v. Shelton*, 325 F.3d 553, 562 (5th Cir. 2003); *United States v. Barnes*, 295 F.3d 1354 (D.C. Cir. 2002); *United States v. Kavoukian*, 315 F.3d 139, 142-44 (2d Cir. 2002); *United States v. Chavez*, 204 F.3d 1305, 1313-14 (11th Cir. 2000); *United States v. Meade*, 175 F.3d 215, 218-21 (1st Cir. 1999); *United States v. Smith*, 964 F. Supp. 286 (N.D. Iowa 1997), *aff'd*, 171 F.3d 617 (8th Cir. 1999); *United States v. Cary*, No. 1:07-cr-74-WSD, 2008 WL 80650 (N.D. Ga. Jan. 4, 2008); *United States v. Pfeiffer*, 206 F. Supp. 2d 1002 (D.S.D. 2002); *United States v. Blosser*, No. 02-40074-01-JAR, 2002 WL 31261170 (D. Kan. Oct. 4, 2002).

Firearms regulation); CRS Report for Congress Order No. RL31143, *Firearms Prohibitions and Domestic Violence Convictions: The Lautenberg Amendment*, at 2 (T.J. Halstead, dated Oct. 1, 2001); CRS Report for Congress Order No. 97-68A, *Gun Ban For Persons Convicted of Misdemeanor Crime Of Domestic Violence: Ex Post Facto And Other Constitutional Issues*, at 4 (Dorothy Schrader, dated Dec. 30, 1996). In particular, the Bureau of Alcohol, Tobacco and Firearms, in promulgating its regulation, was explicit in their interpretation of the Lautenberg Amendment:

The definition of misdemeanor crime of domestic violence includes all offenses that have as an element the use or attempted use of physical force (*e.g.*, assault and battery) if the offense is committed by one of the defined parties. This is true whether or not the State statute specifically defines the offense as a domestic violence misdemeanor. For example, a person convicted of misdemeanor assault and battery against his or her spouse would be prohibited from receiving or possessing firearms or ammunition.

Implementation of Public Law 104208, Omnibus Consolidated Appropriations Act of 1997, 63 Fed. Reg. 35,520, at 35,521 (1998).

Faced with this near universal agreement among courts and government entities, one would think that Congress would seek to change the language of the statute if it believed that all of these entities had incorrectly interpreted it. However, Congress has remained conspicuously silent on the issue, which suggests that the consensus view correctly captures legislative intent. *See, e.g., General Dynamics Land Systems, Inc. v. Cline*, 540 U.S. 581, 593-94 (2004) (noting

that “[t]he Courts of Appeals and district Courts ... prior to this case have enjoyed virtually unanimous accord in understanding the ADEA to forbid only discrimination preferring young to old.... The very strength of this consensus is enough to rule out any serious claim of ambiguity, and congressional silence after years of judicial interpretation supports adherence to the traditional view.”).

Most significantly, Congress revisited the Lautenberg Amendment as recently as 2006, without a single concern raised, or comment made, as to the meaning of the “as an element” language. On January 5, 2006, as part of the reauthorization of the Violence Against Women Act, Congress amended §921(a)(33)(A) to add Tribal law among the predicate misdemeanor offense statutes for conviction under §922(g)(9). *See* Violence Against Women and Department of Justice Reauthorization Act of 2005, Pub. L. 109-162, 119 Stat. 2960 (2005). By this time, eight federal courts of appeals had already held that a domestic relationship is not a required element of a “misdemeanor crime of domestic violence.” The ATF regulation reflecting the same interpretation had been in place for over *nine* years. Had these interpretations been erroneous, Congress could have changed the law. It declined to do so, with not a single reference in the legislative record to any attempt to modify that portion of the Amendment.⁹

⁹ Congress also declined to amend the law in 1997 after Senator Lautenberg’s clear statements of intent on the Senate floor following the Amendment’s passage in 1996, when it revisited the Amendment only to address the lack of a public safety exemption to the domestic violence misdemeanor gun ban. *See* H.R. 445, 105th Cong. (1st. Sess. 1997); S. 262, 105th Cong. (1st. Sess. 1997).

Senator Lautenberg was clear that the Amendment applied to all offenders convicted of violent crimes, whether misdemeanor or felony, committed against loved ones. Almost every federal court of appeals has agreed, Congress's implicit refusal to modify the Amendment in light of this near unanimity is a strong indication of Congressional agreement with the prevailing interpretation.

CONCLUSION

For the reasons set forth above, the Court should reverse the judgment of the Fourth Circuit.

Respectfully submitted,

BETTY JO CHRISTIAN
Counsel of Record
PATRICK F. LINEHAN
SIOBHAN BRILEY
STEPTOE & JOHNSON LLP
1330 Connecticut Avenue, N.W.
Washington, D.C. 20036
(202) 429-3000

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